

Calendar Line 2**Case Name:** *Al Nieves v. County of Santa Clara***Case No.:** 21CV391798

This case arises out of a tragic auto collision in which the two adult children of plaintiff Al Nieves (“Nieves”), Philip and Precious Nieves, were struck and killed by a driver who was being pursued by a Santa Clara County Sheriff’s Deputy. Nieves filed a complaint for negligence against defendant County of Santa Clara (the “County”), alleging that the County is liable for the “negligent and reckless” actions of its Deputy because it failed to adopt a motor vehicle pursuit policy in accordance with Vehicle Code section 17004.7. The County now brings a motion for summary judgment as to the sole cause of action for negligence in the complaint.

I. BACKGROUND

According to the complaint, on April 26, 2021 at approximately 9:55 p.m., Sheriff’s Deputy “Vasey” (later corrected to “Vesey”) saw a vehicle changing lanes and performing a U-turn without signaling. That vehicle was later determined to be driven by Alberto Garcia (“Garcia”). (Complaint, ¶ 7.) Vesey signaled Garcia to stop the vehicle by flashing the overhead lights of his patrol car. (*Ibid.*) Garcia did not stop and fled. (*Ibid.*) Vesey initiated a high-speed pursuit of Garcia, with lights flashing, northbound on Lawrence Expressway near Archbishop Mitty High School. (*Ibid.*) At no time did Vesey activate a siren, horn, or other audible device on his vehicle. (*Ibid.*)

While Vesey was pursuing Garcia, Philip and Precious Nieves were driving southbound on Lawrence Expressway. (Complaint, ¶¶ 2, 8.) As they approached the intersection of Lawrence Expressway and Mitty Way and prepared to make a left turn across Lawrence Expressway onto Mitty Way, Nieves contends that there was nothing to alert them that Vesey was conducting a high-speed pursuit of Garcia and approaching in the opposite direction. (*Ibid.*) As their vehicle continued turning left onto Mitty Way, Garcia’s vehicle broadsided them. (*Ibid.*) Both Philip and Precious were pronounced dead at the scene. (*Ibid.*)

On December 6, 2021, Nieves filed his complaint, alleging a single cause of action for negligence against the County. On May 31, 2024, the County filed the present motion for summary judgment. This matter was originally calendared for a hearing in December 2024 but then mistakenly taken off calendar by the court clerk’s office for two months. The court ultimately rescheduled the matter for a hearing on February 25, 2025.

II. REQUEST FOR JUDICIAL NOTICE

The County has submitted a request for judicial notice with their motion. “Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory forms is that the matter to be noticed must be relevant to a material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307, fn. 18, citing *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422, fn. 2.) It is the court, and not the parties, that determines relevance. Evidence Code section 453, subdivision (b), requires a party seeking notice to “[furnish] the court with sufficient information to enable it to take judicial notice of the matter.” (Evid. Code, § 453, subd. (b).)

Also, “[a] party requesting judicial notice of material under Evidence Code sections 452 or 453 must provide the court and each party with a copy of the material.” (Cal. Rules of Court, rule 3.1306(c).)

The County requests that the court judicially notice two exhibits: Exhibit A is the complaint; Exhibit B is the County’s answer to the complaint. As Exhibit A is the pleading under review, the court denies the County’s request as to this document as unnecessary. (See *Paul v. Patton* (2015) 235 Cal.App.4th 1088, 1091, fn. 1 [denying as unnecessary a request for judicial notice of pleading under review].) The court grants judicial notice of Exhibit B. (Evid. Code, § 452, subd. (d).) At the same time, the court does not take judicial notice of the truth of any disputed facts contained therein. (See *Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 [truth of contents of court records cannot be judicially noticed].)

III. THE COUNTY’S MOTION FOR SUMMARY JUDGMENT

A. Legal Standard

A party moving for summary judgment bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) “A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72, internal citations omitted.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable finder of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 850.) “A party cannot avoid summary judgment by asserting facts based on mere speculation and conjecture, but instead must produce admissible evidence raising a triable issue of fact.” (*Christina C. v. County of Orange* (2013) 220 Cal.App.4th 1371, 1379, internal citations and quotation marks omitted; see also *McHenry v. Asylum Entertainment Delaware, LLC* (2020) 46 Cal.App.5th 469, 479 [because speculation is not evidence, speculation cannot create a triable issue of material fact].)

A motion for summary judgment or summary adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an “issue of duty.” (See Code Civ. Proc., § 437c, subd. (f)(1); *McClasky v. California State Auto. Ass’n* (2010) 189 Cal.App.4th 947, 975 (*McClasky*) [“If a cause of action is not shown to be barred in its entirety, no order for summary judgment – or adjudication – can be entered.”].)

The pleadings limit the issues presented for summary judgment or summary adjudication, and such a motion may not be granted or denied based on issues not raised by the pleadings. (See *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 74 [“[T]he pleadings determine the scope of relevant issues on a summary judgment motion. [Citations.]”].) “A moving party seeking summary judgment or adjudication is not required to go beyond the allegations of the pleading, with respect to new theories that could have been pled, but for which no motion to amend or supplement the pleading was brought, prior to the hearing on the dispositive motion.

[Citations.]” (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444, quoting *Howard v. Omni Hotels Management Corp.* (2012) 203 Cal.App.4th 403, 421.) The evidence must be liberally construed in support of the opposing party, resolving any doubts in favor of that party. (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037.)

B. Discussion

The complaint alleges that the County failed to adopt a motor vehicle policy that satisfied the requirements of Vehicle Code section 17004.7 and that the County breached its duty to exercise reasonable care in the operation of a motor vehicle by a County employee when Vesey “negligently and recklessly initiated a pursuit and negligently and carelessly” continued this pursuit. (Complaint, ¶¶ 11-13.)

1. Vehicle Code section 17004.7

According to the County, under Vehicle Code section 17004.7, “a public agency employing peace officers . . . that adopts and promulgates a code-compliant written policy on vehicular pursuits and provides regular and periodic training on an annual basis for vehicular pursuits, is entitled to statutory immunity. Whether a pursuit policy and training program is sufficient under the statute are questions of law for the trial court, subject to independent review on appeal. [Citation.] Thus, if a public agency adopts a vehicular pursuit policy that meets statutory requirements, immunity results, regardless of the extent to which the policy is implemented in general or followed in a particular pursuit. [Citation.].” (Memorandum of Points and Authorities in Support of the County’s Motion for Summary Judgment (“MPA”), pp. 11:26-12:6.)

Vehicle Code section 17004.7 does indeed provide public agencies with immunity from liability for collisions involving vehicles being pursued by law enforcement officers if the agency “adopts and promulgates a written policy on, and provides regular and periodic training on an annual basis for, vehicular pursuits complying with subdivisions (c) and (d)” (Veh. Code, § 17004.7, subd. (b)(1); see also *Ramirez v. City of Gardena* (2018) 5 Cal.5th 995, 997.) Vehicle Code section 17004.7, subdivision (c), contains 12 requirements that the County must follow in promulgating a qualifying written policy. (Veh. Code, § 17004.7, subd. (c).) The County is correct that “[a] determination of whether a public agency has complied with subdivisions (c) and (d) is a question of law for the court.” (Veh. Code, § 17004.7, subd. (f).)

The County argues that it has met the requirements of section 17004.7 by establishing a code-compliant written policy and holding annual trainings. (See MPA, pp. 12:7-20:25.) In opposition, Nieves argues that the County does not qualify for “pursuit immunity” because the County never treated the incident as a “pursuit,” and because the County failed to meet the requirements of Vehicle Code section 17004.7, subdivisions (d) and (c)(1), (7)-(10), (12). (See Plaintiff’s Memorandum of Points and Authorities in Opposition to Defendant’s Motion for Summary Judgment (“Opposition”), pp. 7:13-15:13.)

As an initial matter, the court does not find persuasive Nieves’s argument that the County cannot seek immunity because it purportedly did not “treat” the incident at issue as a “pursuit” by entering the incident in its “pursuit database” or complying with “post-pursuit” procedures. (See Opposition, pp. 8:15-9:3.) Nieves identifies no legal authority supporting this argument; on the contrary, it has been held that if an agency “adopts a pursuit policy which

meets the statutory requirements [under Vehicle Code section 17004.7], then immunity results. The extent to which the policy was implemented in general and was followed in the particular pursuit is irrelevant. [Citations.]” (*Brumer v. City of Los Angeles* (1994) 24 Cal.App.4th 983, 987.)

Nor does the court find persuasive Nievas’s argument that the County failed to comply with the annual training required by subdivisions (b)(1) and (d) of section 17004.7. (See Opposition, pp. 14:13-15:13.) “A public agency employing peace officers that adopts and promulgates a written policy on, and provides regular and periodic training on an annual basis for . . .” (Veh. Code, § 17004.7, subd. (b)(1).) “‘Regular and periodic training’ under this section means annual training that shall include, at a minimum, coverage of each of the subjects and elements set forth in subdivision (c) and that shall comply, at a minimum, with the training guidelines established pursuant to Section 13519.8 of the Penal Code.” (*Id.* at § 17004.7, subd. (d).)

Nievas argues that the County did not comply with “the annual pursuit training requirements of the statute,” and “training compliance produced by the County for the years 2020 and 2021 show that compliance varied significantly by division.” (See Opposition, p. 15:1-8.) The court notes that Vehicle Code section 17004.7 and Penal Code section 13519.8 do not define “annual” or mention the degree of compliance required with any training policies produced by the County. Nievas seems to be arguing that each annual training must always occur within 12 months of the other, as opposed to at least once every calendar year, but he cites no supporting legal authority. Similarly, he cites no authority for the proposition that the degree of compliance must meet some minimum percentage of the police force as a whole (*e.g.*, at least 50%, 70%, 80% or more). Section 17004.7, subdivision (b)(2), merely requires that peace officers certify that they have received, read, and understand “the policy,” not that they have actually received training on an annual basis. (See Veh. Code, § 17004.7, subd. (b)(2).) The County has otherwise submitted evidence that it provides annual training for its law enforcement officers on vehicle pursuit. (See MPA, p. 20:4-25; Veh. Code, § 17004.7, subd. (d); Separate Statement of Undisputed Material Facts in Support of Defendant’s Motion for Summary Judgment (“UMF”) Nos. 27-30; Oberdorfer Decl., ¶¶ 14-17, Exs. L, M, N.)

As for the requirements of section 17004.7, subdivision (c), the court finds that the County has met its initial burden of demonstrating its compliance with subdivisions (c)(2), (3), (4), (5), (6), (11), and Nievas does not contend otherwise. According to the County, the Santa Clara County Sheriff’s Office adopted General Orders 13.01 and 13.02 (the “Policy”), effective July 7, 2010. (MPA, p. 12:12-15.) This Policy determines the total number of law enforcement vehicles authorized to participate in a pursuit. (See MPA, pp. 14:6-14:20; Veh. Code, § 17004.7, subd. (c)(2); UMF No. 24; Declaration of Adam Oberdorfer (“Oberdorfer Decl.”), Ex. I at § 13.02.B.1-4.) It further describes the communications procedures an officer must follow during pursuit, the role of a supervisor during a pursuit, a peace officer’s “driving tactics” and “pursuit intervention tactics,” and procedures for the effective coordination, management, and control of an interjurisdictional pursuit. (See MPA, pp. 14:21-16:25, 18:24-19:14; Veh. Code, § 17004.7, subds. (c)(3), (4), (5), (6), and (11); UMF Nos. 23, 24; Oberdorfer Decl., Ex. H, §§ 13.01.B, 13.01.C, 13.01.F; Oberdorfer Decl., Ex. I, §§ 13.02.A, 13.02.B, 13.02.C, 13.02.D, 13.02.E, 13.02.F, 13.02.G, 13.02.H, 13.02.I.)

Despite Nievas’s arguments to the contrary, the court finds that the Policy also complies with section 17004.7, subdivisions (c)(7), (8), (9), (10), and (12). The Policy

outlines the factors a peace officer must consider during a vehicle pursuit (including factors in determining speed), the role of air support during a pursuit, the factors a peace officer should consider when determining whether to terminate a vehicle pursuit, and the procedures for apprehending an offender following a vehicle pursuit (including “forcible stop tactics”). (See MPA, pp. 16:26-18:23, 19:15-20:4; Veh. Code, § 17004.7, subds. (c)(7), (8), (9), and (10); UMF Nos. 23, 24, 25, 32; Oberdorfer Decl., Ex. H, § 13.01.C; Oberdorfer Decl., Ex. I, §§ 13.02.A, 13.02.D, 13.02.E, 13.02.J, 13.02.I.)

The court finds more persuasive Nieves’s argument regarding the Policy’s failure to define the term “pursuit,” as well as the Policy’s failure to provide for reporting and a “postpursuit” analysis. (Opposition, pp. 8:15-9:3.) Section 17004.7 requires that a “policy for the safe conduct of motor vehicle pursuits by peace officers shall meet all of the following minimum standards The policy shall define a ‘pursuit.’” (Veh. Code, § 17004.7, subd. (c)(1).) The County argues that the Policy defines “a pursuit to be part of the Sheriff’s Office ‘Code Three’ emergency response.” (Reply to Plaintiff’s Opposition to Defendant’s Motion for Summary Judgment (“Reply”), p. 3:17-19.) The language regarding the “Sheriff Office Code Three Emergency” states that an “Emergency response (superseding normal traffic law) is permissible when: [t]he vehicle is being used in the immediate pursuit of an actual or suspected violator of the law.” (Oberdorfer Decl., Ex. H, § 13.01.A.) This language *uses* the term “pursuit” but does not *define* it. The County does not direct the court to any other instance where the Policy actually defines the term.

Similarly, section 17004.7, subdivision (c)(12), requires not only the completion of standard forms after the pursuit is over (*e.g.*, the “CHP Pursuit Report Form 187” or an “Incident Report”), but also that a public agency: “Establish the level and procedures of postpursuit analysis, review, and feedback, [and] [e]stablish procedures for written postpursuit review and followup.” The Policy does not contain any such procedures for “analysis, review, and feedback” or for “written postpursuit review and followup.” (Oberdorfer Decl., Ex. I, § 13.02.K.) Although the County points to “detailed guidance to supervisors regarding additional *internal* post-pursuit review,” it admits that none of this was contained in the Policy itself at the time of the incident at issue here. (Reply, p. 7:11-12.) As Nieves notes, this “detailed guidance” was not distributed to all peace officers, as required by section 17004.7. Indeed, it appears that Vesey’s own immediate supervisor, Deputy Michael Jacobs, testified at his deposition that he had never seen this detailed guidance and that it was addressed to a different patrol division from his and Vesey’s division. (AUMF 54.)

Thus, the court finds that the County does not qualify for immunity under Vehicle Code section 17004.7 as a result of the failure of the Policy to define “pursuit” under subdivision (c)(1) and the failure of the Policy to provide adequate procedures for post-pursuit analysis, review, feedback, and follow-up under subdivision (c)(12).

2. Liability Based on the Alleged Absence of Any Reasonable Suspicion to Initiate a Traffic Stop

Nieves argues that the County is not entitled to “discretionary act” immunity because Vesey acted without any reasonable suspicion of a traffic violation or other illegal activity by Garcia. (Opposition, p. 15:14-15.) According to Nieves, a “police officer must have reasonable suspicion of a traffic violation or other illegal activity to legally stop a car on a public road At best, Vesey’s decision to initiate a traffic stop of the Garcia vehicle would

be a ‘ministerial’ or ‘operational’ discretionary act not protected by Government Code section 820.2.” (*Id.* at pp. 16:19-17:2.)

The court agrees with the County that Nieves cannot defeat a summary judgment on the ground that Vesey lacked reasonable suspicion to make a traffic stop. (See Reply, pp. 8:10-9:5.) The complaint alleges that “Defendants, and each of them, breached [their] duty when on April 26, 2021, County of Santa Clara Sheriff’s Department personnel negligently and recklessly initiated a pursuit and negligently and carelessly continued a pursuit of Alberto Garcia which should have been terminated due to high risk of injury to innocent bystanders.” (Complaint, ¶ 13 [capitalization removed].) The complaint further alleges that the County “failed to adopt a motor vehicle pursuit to policy that satisfied the requirements of Vehicle Code § 17004.7.” (*Id.* at ¶ 11.) The complaint says nothing about the lack of any basis to make a traffic stop.

“The materiality of a disputed fact is measured by the pleadings . . . [Citations.] Moving defendants have the burden on summary judgment of negating only those theories of liability as alleged in the complaint and [are] not obliged to refute liability on some theoretical possibility not included in the pleadings, simply because such a claim was raised in plaintiff’s declaration in opposition to the motion for summary judgment. [Citation.]” (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 290, internal quotation marks omitted.) To the extent that Nieves seeks to assert liability against the County for the *absence of any reasonable suspicion* to initiate a traffic stop of Garcia, as opposed to the decision to initiate a *pursuit* of Garcia once Garcia began to evade apprehension, this theory of liability is outside the scope of anything asserted in the complaint.

3. Liability for Initiating a Pursuit

The County argues that it “cannot be held liable for the Deputy’s determination to initiate a pursuit of the Garcia vehicle because that is a discretionary act that is immune from liability under Government Code section 820.2.” (MPA, p. 22:16-18.) According to the County, “the Deputy decided to initiate pursuit, and activated his overhead red and blue flashing lights. In response to this decision, Garcia accelerated away at high speed Garcia’s high-speed attempt to escape constitutes willfully fleeing from a police vehicle at a minimum. [Citation.] The Deputy’s discretionary decision to initiate pursuit of Garcia for a felony in progress is no different than the officers’ determination to initiate a pursuit in [*Bratt v. City and County of San Francisco* (1975) 50 Cal.App.3d 550, 553 (*Bratt*)].” (*Id.* at p. 23:1-7.)

“The immunity provided by [Vehicle Code section 17004.7] is in addition to any other immunity provided by law.” (Veh. Code, § 17004.7, subd. (a).) “Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.” (Gov. Code, § 815.2, subd. (b).) “Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of discretion vested in him, whether or not such discretion be abused.” (Gov. Code, § 820.2.)

“Discretionary immunity under section 820.2 has been found to apply to many areas of police work. Courts have found the following to constitute discretionary decisions for which

police officers are immune under section 820.2: (1) the decision to pursue a fleeing vehicle [citations]; (2) the decision to investigate or not investigate a vehicle accident [citation]; (3) the failure to make an arrest or to take some protective action less drastic than arrest [citation]; (4) the decision whether to use official authority to resolve a dispute [citation]; and (5) the decision whether to remove a stranded vehicle [citations].” (*Conway v. County of Tuolumne* (2014) 231 Cal.App.4th 1005, 1015 (*Conway*).)

“Police officers, however, are not immune under section 820.2 when their acts are ministerial or public policy dictates against immunity. Accordingly, courts have determined discretionary immunity does not apply to the following: (1) an officer’s conduct of an accident investigation after the officer made the discretionary decision to undertake the investigation [citations]; (2) arresting the wrong person while executing a warrant [citation]; (3) deciding to arrest an individual when there was no probable cause to do so [citation]; and (4) using unreasonable force when making an arrest or overcoming resistance to it [citation].” (*Conway, supra*, 231 Cal.App.4th at p. 1015.)

The court finds the *Bratt* case relied on by the County to be determinative here. In *Bratt*, two police officers stopped behind a white Cadillac vehicle double-parked on Fillmore Street in San Francisco. (*Bratt, supra*, 50 Cal.App.3d at p. 552.) The occupants of the double-parked vehicle appeared startled and nervous, and a third passenger hurriedly entered the car. (*Ibid.*) As the officers approached on foot, the double-parked vehicle moved off rapidly. The police returned to their car and gave chase. The pursuit resulted in a collision between the Cadillac and another vehicle. (*Ibid.*) The plaintiffs filed a complaint against the City and County of San Francisco for personal injury to two persons and the wrongful death of two others.³ They argued that “the police officers acted arbitrarily in deciding to exercise the privilege, contained in Vehicle Code sections 21055-21056, which allow[ed] drivers of emergency vehicles to disregard ordinary rules of the road in urgent situations [and] that this abuse proximately caused the accident” (*Id.* at pp. 552-553.)

The Court of Appeal held that “if the accident occurred as a consequence of any police conduct, that conduct would be the decision to pursue the fleeing vehicle; there was no evidence that the accident was caused by the violation of any specific traffic regulation mentioned in [Vehicle Code] section 21055. The decision to pursue is protected by Vehicle Code section 17004, which precludes liability for injuries resulting from the operation of an emergency vehicle ‘in the immediate pursuit of an actual or suspected violator of the law’ *The decision to pursue was a discretionary act additionally protected by Government Code section 820.2. [Citations.]*” (*Bratt, supra*, 50 Cal.App.3d at p. 553, emphasis added.) The Court distinguished the facts before it from those in *McCorkle v. City of Los Angeles* (1969) 70 Cal.2d 252 (*McCorkle*) because “[i]n the present case, negligence was alleged in the police officers’ decision to give high speed chase rather than in the officers’ execution of that decision.” (*Id.* at p. 554.)

Nievas does not address *Bratt* in his opposition. Instead, Nievas discusses cases where Courts of Appeal have articulated “the distinction between the types of discretionary acts for which immunity is provided under [Government Code section 820.2]” (Opposition, p.

³ It is unclear from the opinion whether the plaintiffs were the occupants of the Cadillac, the occupants of the other vehicle, or a combination of both.

15:22-23.) According to Nievas, examples where “courts have carefully preserved the distinction between policy and operational judgment” include “a bus driver’s decision not to intervene in one passenger’s violent assault against another [citation], university therapists’ failure to warn a patient’s homicide victim of the patient’s prior threats to kill her [citation], and a police’s negligent conduct of a traffic investigation once undertaken [citation.]” (*Id.* at p. 16:7-13.) These cases are not as directly analogous to the facts here as *Bratt* is. Indeed, these cases are extremely different from the circumstances here. Again, the Court in *Bratt* expressly held that the “decision to pursue was a discretionary act” protected by Government Code section 820.2. (*Bratt, supra*, 50 Cal.App.3d at p. 555.)

Accordingly, the court concludes that the County has shown the absence of any material issue of fact concerning liability for Vesey’s decision to initiate a pursuit of Garcia’s vehicle.

4. Liability for Negligent Conduct During the Pursuit

While the County persuasively argues that immunity applies to Vesey’s decision to *initiate* a pursuit, it is less persuasive on the question of whether immunity applies to Vesey’s conduct *during* the pursuit. (See MPA, pp. 23:8-26:13; *Bratt, supra*, 50 Cal.App.3d at p. 554 [“In the present case, negligence was alleged in the police officers’ decision to give high speed chase rather than in the officers’ execution of that decision.”]; *Conway, supra*, 231 Cal.App.4th at p. 1019 [“George relies on the false assumption that once police decide to intervene in a dispute, any subsequent action by the police is ministerial. [Citation.] Instead, each decision must be examined to determine whether it constitutes a discretionary or ministerial decision. In this case, the decision to use tear gas resulted from choices and judgments made in response to changing circumstances; it was not made in blind obedience to orders. The difference between this case and *McCorkle* is that here, the decision to use tear gas was based on personal deliberation, decision and judgment, while asking the plaintiff in *McCorkle* to come into the intersection involved no such deliberation, decision, or judgment.”].)

“The elements of a negligence cause of action are duty, breach, causation and damages. [Citation.]” (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.) The complaint alleges that Sheriff Department “personnel negligently and recklessly initiated a pursuit and negligent and carelessly continued a pursuit of Alberto Garcia which should have been terminated due to the high risk of injury to innocent bystanders.” (Complaint, ¶ 13.) “Nothing” alerted Philip and Precious Nievas that Vesey had engaged in a police pursuit approaching them a high speed. (*Id.* at ¶ 8.) At “no time” did Vesey activate or use a siren, horn, or other audible device to warn the public of the substantial hazard of a police pursuit on a congested public roadway at a high speed. (*Id.* at ¶ 7.)

The County does not appear to contest duty, breach, or damages. Instead, the County argues that Vesey’s actions were not a “cause in fact” of the collision. (MPA, p. 23:8-9.) According to the County, Nievas cannot establish “that is more probable than not that the activation of the Deputy’s siren would have prevented the collision.” (*Id.* at p. 23:22-23.) The County claims that the undisputed facts “support an inference that the collision would have occurred even if the Deputy had sounded his siren at some point during the brief 21-second[s] before the collision because (1) the siren would not have changed Garcia’s course of action and (2) there is no evidence that the decedents would have reacted to the siren when they did not react to the oncoming blue and red flashing lights despite having a clear, unobstructed view.”

(*Id.* at p. 24:16-20.) Further, “it is undisputed that the Deputy could safely bring his vehicle to a complete stop without hitting any vehicles or endangering any third parties. [Citation.] This fact supports an inference that the speed of the Deputy’s vehicle was not a factor because he maintained sufficient distance from the Garcia vehicle to safely bring his vehicle to a stop.” (*Id.* at p. 26:8-11.)

The court concludes that the foregoing “inferences” are material factual issues that cannot be adjudicated on summary judgment. Accordingly, the County has not met its burden of showing that Nievas cannot establish causation as a matter of law.

In support of its motion, the County directs the court to Garcia’s testimony. (See MPA, p. 25:24-25.) Garcia testified that he had an unregistered gun in his vehicle, that he did not want police to “find out about” this, that he was “scared and nervous” while Vesey pursued him, and that he attempted to evade Vesey because he “was scared.” (Schmid Dec., ¶ 2, Ex. C, pp. 15:20-18:5.) Garcia further testified that if the police officer had “put his siren on,” he still did not think he “would have pulled over because [he] was panicked and scared and rushed.” (*Id.* at pp. 59:24-60:8.) This testimony is only part of the equation, however. Even if it is undisputed that Garcia would not have changed his behavior with Vesey’s activation of sirens or horns, this evidence fails to address Nievas’s allegation that “nothing” alerted Philip and Precious to the approaching pursuit. (See Complaint, ¶ 8.) This is not something that the court can determine as a matter of law. It is for the finder of fact to decide.

The County also directs the court to a declaration submitted by its expert, Jason A. Droll, which concludes that “Philip Nievas had a visible sightline to the emergency lights on top of Vesey’s Ford Explorer for the entirety of the 21.29 seconds the emergency lights were operating prior to the incident collision.” (Declaration of Jason A. Droll, ¶ 22.) Droll does not opine, and the County does not offer any other evidence to indicate, that such a visible sightline to Vesey’s more distant police vehicle means that Philip and Precious could have avoided the collision with Garcia’s vehicle, which was in front of Vesey’s.⁴ The County argues that when “there is evidence that the harm could have occurred even in the absence of the defendant’s negligence, proof of causation cannot be based on mere speculation or conjecture,” but the County has not directed the court to any such evidence. (See MPA, pp. 24:23-24.)

As to the County’s argument that Vesey could safely bring his vehicle to a stop without endangering third parties, the County directs the court to a dashcam video of the incident without providing any other evidentiary support (for instance, directing the court to testimony, expert or otherwise) for this argument. (*Id.* at p. 26:6-13 [“But, as the dash cam video of the event confirms, it is undisputed that the Deputy could safely bring his vehicle to a complete stop without hitting any vehicles or endangering any third parties.”].) This is irrelevant. As the dashcam video shows, Vesey was far behind Garcia at the time of the collision, so the fact that he was able to slow down or stop says nothing about the collision itself or about any alleged negligence on the part of Vesey. Again, it is not Vesey who crashed into Philip and Precious. Nievas alleges that Vesey’s *pursuit* caused the collision, and so the court strains to

⁴ According to the dashcam video submitted by the County, Garcia’s vehicle was well in front of Vesey’s vehicle at the moment of collision.

see how Vesey's ability to stop his vehicle at the accident scene has any bearing on whether Vesey's conduct during the pursuit caused was a "cause in fact" of the collision.⁵

Even if the County could be deemed to have met its initial burden on summary judgment, the court would conclude that Nievas has raised issues of triable fact as to the degree of visibility that Philip and Precious had of the approaching vehicles driven by Garcia and Vesey. First, Nievas submits a declaration from expert Joel Wilson, who concludes that Droll failed to consider a signal pole that would have obstructed Philip Nievas's view of Vesey's blue and red lights for a period of time as Garcia and Vesey approached. (Declaration of Joel Wilson in Opposition to Defendant's Motion for Summary Judgment ("Wilson Decl."), ¶¶ 23-26.) The County objects to the Wilson Declaration on several grounds, including that the declaration relies on testimony and evidence obtained from a third-party witness that Nievas did not submit to the court as evidence. (See, e.g., Objections to Plaintiff's Evidence Submitted in Opposition to the County ("Objections"), p. 3:14-24.) The court sustains the County's objections to the Wilson Declaration to the extent that the testimony and evidence obtained by the third-party witness are offered to establish the sequence of events leading up to the collision, rather than to support Wilson's opinion regarding the visibility of Vesey's blue and red lights. (See *People v. Sanchez* (2016) 63 Cal.4th 665, 685-686 [although experts may rely on hearsay in forming their opinion, they may not "relate as true case-specific facts asserted in hearsay statements, unless they are independently proven by competent evidence or are covered by a hearsay exception"].) Therefore, to the extent that the Wilson Declaration relies on this third-party evidence, the court declines to consider it. Otherwise, the court overrules the County's objections to the Wilson declaration. While it does not appear that Wilson conducted a "visibility study," as the County notes, Wilson otherwise discusses the materials he reviewed in reaching his conclusion and provides details as to the facts that informed his conclusions. (Wilson Decl., ¶¶ 4-26.)

Nievas also submits a declaration from expert David Krauss, who concludes that "it would have been unlikely for [Philip Nievas] to perceive Mr. Garcia's vehicle as a hazard Even if the police cruiser's emergency lights were clearly visible and unobstructed, they were positioned well behind Mr. Garcia's vehicle. At the distance of Mr. Garcia's vehicle, a typical driver in Mr. Nievas's position would have reasonably judged it safe to execute a left turn." (Declaration of David A. Krauss in Opposition to Defendant's Motion for Summary Judgment ("Krauss Decl."), ¶¶ 14-15.) The County objects to the Krauss declaration on several grounds. (See, e.g., Objections, pp. 8:3-13:6.) The court overrules these objections. Again, while it does not appear that Krauss conducted a "visibility study," Krauss otherwise discusses the materials he reviewed in reaching his conclusion and provides detail as to the facts that informed his conclusions. (Krauss Decl., ¶¶ 4-17.)

A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an "issue of duty." (See Code Civ. Proc., § 437c, subd. (f)(1); *McClasky*, *supra*, 189 Cal.App.4th at p. 975 ["If a cause of action is not shown to be barred in its entirety, no order for summary

⁵ In reply, the County makes a new argument: that Garcia's willful, reckless, and criminal conduct constituted a *superseding cause* of the collision. (See Reply, pp. 9:26-10:20.) "Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument." (*Browne v. County of Tehama* (2013) 213 Cal.App.4th 704, 720, fn. 10, quoting *American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453.) The court disregards this new argument.

judgment – or adjudication – can be entered.”].) Here, while the court agrees with the County that it cannot be held liable for Vesey’s decision to initiate a pursuit, the court finds that the County has not met its burden of establishing the absence of any triable issues of fact regarding the question of causation arising out of Vesey’s conduct during the pursuit.

Therefore, the motion must be denied.

C. Evidentiary Objections

As discussed above, the court sustains the County’s objections to the Wilson Declaration insofar as the testimony and evidence obtained by a third party is offered to establish the sequence of events leading up to the collision, rather than to support Wilson’s opinion regarding the visibility of Vesey’s vehicle. Otherwise, the court overrules the County’s objections to the Wilson and Krauss declarations.

The court declines to consider the County’s remaining objections, which are not material to the outcome of the motion. (Code Civ. Proc., § 437c, subd. (q) [“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.”].)

IV. CONCLUSION

The court DENIES the motion for summary judgment.

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Calendar Line 3**Case Name:** *Christian Humanitarian Aid, Inc. v. AM Star Construction, Inc. et al.***Case No.:** 22CV396170

This is a motion by plaintiff Christian Humanitarian Aid, Inc. (“CHA”) to “enforce” the court’s prior orders (dated August 29, 2024 and September 5, 2024) imposing monetary sanctions on defendant Michael Achkar, as well as a request for further monetary sanctions in the amount of \$2,100.00. In response, Achkar states that the previously ordered amounts, totaling \$5,326.25, have now been paid, mooted any need for enforcement. In addition, Achkar contends that the court has no authority to award additional monetary sanctions for a failure to comply with a previous sanctions order.

Although the court disagrees with Achkar’s unduly narrow view of its authority, as well as his unduly narrow view of what constitutes an abuse of the discovery process, the court concludes that further monetary sanctions are unnecessary here, given that Achkar has now paid the \$5,326.25, albeit belatedly. Although CHA undoubtedly incurred additional costs in bringing the present motion, the court finds Achkar has been sanctioned enough for his prior failure to provide adequate responses to document requests and interrogatories, which was the original basis for sanctions. Moreover, had Achkar continued to fail to pay the previous monetary sanctions, they would simply have had the effect of a money judgment, enforceable by a writ of execution, making this motion somewhat unnecessary. (See *Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 615.)

With a jury trial coming up in less than three months, the parties need to move on from their excessive motion practice.

The motion is denied.

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